

**CHAPTER xix.**

An Act for continuing the Bridgwater Gas Light Company for regulating and increasing the capital of the Company and for other purposes. A.D. 1903.

[30th June 1903.]

WHEREAS by an Act of Parliament passed in the fourth year 4 Will. 4.
c. xxxiii. of the reign of His late Majesty King William the Fourth intituled "An Act for lighting with gas the town or borough of "Bridgwater in the county of Somerset and suburbs of the said "town or borough" (hereinafter called "the recited Act") the Bridgwater Gas Light Company were incorporated and were empowered to manufacture and supply gas to and within the town or borough of Bridgwater and the suburbs thereof:

And whereas by the recited Act the Company were authorised to raise a share capital of £4,000 divided into shares of £20 each and were also authorised to raise a further sum on mortgage of their undertaking not exceeding £1,300:

And whereas the Company have raised and expended the whole of the said share capital and have borrowed the said sum of £1,300 on mortgage of their undertaking which said sum is still owing on mortgage:

And whereas between the years 1837 and 1853 various calls were made upon the shareholders of the Company and a sum of £3,100 was thus subscribed and added to the share capital raised under the authority of the recited Act:

And whereas between the years 1844 and 1883 sums amounting in the whole to the sum of £10,900 were from time to time taken from undivided profits and expended in enlarging and improving the Company's structural works which sums together with the subscribed capital expenditure amounted to an aggregate sum of £18,000 at which amount the capital of the Company has stood since the year 1883:

A.D. 1903.
—

And whereas in addition to the before-mentioned sum of £10,900 the Company have since the year 1883 expended out of the profits of their undertaking upon the general improvement and extension of their works the sum of £18,596 (the bulk of such expenditure having been made since the year 1892) making together with the before-mentioned sum of £1,300 borrowed on mortgage the sum of £37,896 expended on the works of the Company :

And whereas the Company have also out of profits provided and are now using the sum of £5,500 as working capital :

And whereas the Company have caused a structural valuation to be made of the land and of the works of manufacture storage and distribution erected thereon and of the mains meters stoves lamp-posts and services as fixed belonging to the Company which valuation together amounts to the aggregate sum of £37,240 :

And whereas it is reasonable that stock representing the amount of the capital moneys and other sums so expended on the undertaking and in the working thereof as aforesaid should be created and should be distributed rateably among the present shareholders of the Company in the manner and under the conditions in this Act prescribed and set forth :

And whereas the net earnings of the Company for the last five years have amounted on the average to the sum of £3,290 and upwards annually :

And whereas since the passing of the recited Act the borough of Bridgwater has been extended and the population of the borough and the demand for gas in the district supplied by the Company has increased and is increasing and other parishes and places adjacent thereto are wholly without a supply of gas and it is expedient that the works of the Company should be enlarged and improved and their mains and limits of supply extended and that additional land should be acquired and additional capital provided for such purposes :

And whereas the Company are not at present subject to any restriction or control as to the dividends paid to their shareholders the price to be paid by the consumers for gas supplied or the illuminating power of gas and it is expedient that in regard to these and other matters the Company should be subject to the powers and regulations of the several statutes incorporated in and by this Act and that the recited Act be repealed :

And whereas it is expedient that the Company be authorised to purchase and acquire by compulsion or otherwise for the purposes of their undertaking the lands described in the Second

Schedule to this Act which adjoin the existing gasworks of the Company and on such lands to extend the existing and erect new gasworks : A.D. 1903.

And whereas a plan of the lands which may be purchased by compulsion for the purposes and under the powers of this Act and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Somerset and are hereinafter respectively referred to as “ the deposited plan and book of reference ” :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the *Bridgwater Gas Act 1903.* Short title.

2. The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts and the Gasworks Clauses Act 1847 are subject to the provisions of this Act incorporated with and form part of this Act and the Gasworks Clauses Act 1871 shall apply to the existing undertaking of the Company as if the same had been authorised by this Act. Incorporation of Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

The expression “ the Company ” means the Bridgwater Gas Light Company continued incorporated by this Act ;

The expression “ the Corporation ” means the mayor aldermen and burgesses of the borough of Bridgwater in the county of Somerset ;

The expressions “ the works ” “ the gasworks ” and “ the undertaking ” shall respectively mean and include the

A.D. 1903.

gasworks and works connected therewith by this Act continued vested in and authorised to be made or maintained by the Company and any improvement and enlargement or extension thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges effects and undertaking of the Company and every part thereof respectively.

Repeal of
recited Act.

4. The recited Act is hereby repealed.

Limits of
Act.

5. The limits of this Act shall be and include the borough of Bridgwater as now constituted and so much of the parishes of Bridgwater-without Wembdon Chilton-Trinity Durleigh and North Petherton all in the county of Somerset as is situate within a radius of one mile and a half from the Borough Market House in Bridgwater.

Incorporation of
Company.

6. Notwithstanding the repeal of the recited Act the Company shall for the purposes of this Act and as from the passing of the recited Act remain incorporated by the name of "the Bridgwater Gas Light Company" and by that name shall continue to be and shall be one body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and to manufacture gas and supply gas within the limits of their undertaking and this Act for public and private purposes of light heat or motive power and for cooking food and for any other purposes for which gas is suitable and for the purpose of utilising and distributing materials used in and about the manufacture of gas as aforesaid and of residual products arising from such manufacture and for converting such products into other materials and for dealing selling and disposing of lime coke tar asphaltum chemicals and other residual and manufactured products and other matters and things and for carrying on the business usually carried on by a gas company or incidental thereto.

Gasworks
vested in
Company.

7. Notwithstanding the repeal of the recited Act the Company shall on the passing of this Act be and remain seised and possessed of and entitled to all lands works buildings engines gasholders retorts purifiers machinery mains pipes services lamp-posts meters apparatus moneys securities books papers deeds writings maps effects claims and demands and all other property of every description whether real or personal and all rights easements and privileges of or to which the Company or any person or persons in trust for them were or was at the time of the

passing of this Act seised or possessed of or in any way entitled to at law or in equity with the appurtenances and may accordingly maintain use exercise and enjoy the same as if the recited Act were not repealed. A.D. 1903.

8. Notwithstanding the repeal of the recited Act all purchases sales conveyances assurances demises grants leases mortgages bonds covenants agreements contracts and securities and other acts and things before the passing of this Act made done entered into or executed by virtue of the recited Act or with reference to the purposes thereof or otherwise shall be as good valid and effectual to all intents and purposes whatsoever for against or with reference to or in favour of the Company as if this Act had not been passed and may be proceeded on or with and enforced accordingly. General saving of rights.

9. Notwithstanding the repeal of the recited Act no action suit prosecution or other proceeding whatsoever commenced either by or against the Company before the passing of this Act shall abate or be discontinued or prejudicially affected by this Act but on the contrary the same shall continue and take effect both in favour of and against the Company in like manner as if this Act had not been passed. Actions &c. not to abate.

10. Notwithstanding the repeal of the recited Act all gas rents and other rents rates remunerations and charges which immediately before the passing of this Act were or are due and payable or accruing and becoming due and payable to the Company shall be payable to and may be collected and recovered by the Company in like manner as gas rents and other rents rates remunerations and charges are by this Act authorised to be recovered. Recovery of gas rents.

11. Notwithstanding the repeal of the recited Act all persons who on the passing of this Act owed any sum of money to the Company or to any person on their behalf shall pay the same with all interest (if any) due or to accrue due thereon to the Company and all debts and sums of money which on the passing of this Act were due or owing by or recoverable from the Company or for the payment of which the Company were or but for this Act would have been liable together with all interest (if any) due or to become due thereon shall be paid by or be recoverable from the Company. Debts due to and by Company to be paid to and by Company.

12. Notwithstanding the repeal of the recited Act all certificates (until cancelled under the authority of this Act) sales transfers and dispositions made or executed before the passing of this Act of any share or shares in the capital of the Company shall remain in full Certificates &c. to remain in force.

A.D. 1903. — force and be available in the same manner as if the same had been made or executed under the powers of this Act.

Books &c. to be received in evidence.

13. Notwithstanding the repeal of the recited Act all registers books orders copies notes minutes entries plans writings and other documents by the recited Act directed or authorised to be kept or in part kept and which if this Act had not been passed would have been admissible in evidence shall be admitted in evidence in all courts and upon all questions of law and equity and elsewhere or otherwise accordingly.

Officers to continue until removed.

14. Notwithstanding the repeal of the recited Act the treasurer manager clerk and other officers and persons appointed or acting by virtue or under the authority of that Act and who shall be in office and employed by the Company on the passing of this Act shall retain their respective offices and employments together with the salaries and emoluments attached thereto until they shall respectively be removed or cease to retain their respective offices or employments and all such persons shall have the like power and authority for the purposes of this Act and be subject to the like power of removal rules regulations pains and penalties in all respects whatsoever as if they had respectively been appointed under this Act.

Resolutions &c. to continue in force.

15. Notwithstanding the repeal of the recited Act all resolutions rules notices regulations byelaws and orders made under the authority of the recited Act shall continue in force until the same be repealed altered or varied under this Act and such resolutions rules notices regulations byelaws and orders respectively and all penalties and forfeitures thereby respectively imposed may be enforced recovered and applied by the Company in the same manner in all respects as if the same had been made and imposed respectively under this Act.

Present register of members to be continued.

16. The books kept by the Company for entering the names and designations of the proprietors thereof with the numbers of their shares shall and may continue to be kept for the same purpose by the Company and shall until some other register of shareholders or stockholders shall be provided by the Company be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

Capital.

17. On the passing of this Act the capital of the Company shall be eighty-four thousand pounds being the aggregate of the following sums :—

- (1) Capital stock to the amount of eighteen thousand pounds being the existing capital of the Company which shall form and hereafter be called “ original stock A ” :

- (2) Capital stock to the amount of twenty-four thousand pounds being stock created in respect of moneys expended by the Company out of revenue upon extensions and improvements and working capital and hereinafter called "improvement stock B" : A.D. 1903.
—

The above amounts of capital namely eighteen thousand pounds and twenty-four thousand pounds (making in the aggregate the sum of forty-two thousand pounds) shall be deemed fully paid up :

- (3) Capital stock to the amount of forty-two thousand pounds by this Act authorised to be created as hereinafter mentioned and hereinafter called "new stock C."

18. On the passing of this Act the original stock A and the improvement stock B shall be appropriated to and vested in the several persons who immediately before the passing of this Act were the registered proprietors of the Company in substitution for the existing shares of the Company and such stocks respectively shall be distributed between such persons in proportion to the number and nominal value of shares to which such persons were then entitled and such stocks respectively shall be subject and liable to the same trusts powers provisions declarations and agreements charges liens and incumbrances as immediately before the passing of this Act affected the shares for which the same are substituted and so as to give effect to and not revoke any deed will or other instrument or any testamentary disposition of or affecting the same and every such deed will or other instrument or testamentary disposition shall take effect with reference to a proportionate amount of the stock so substituted. Vesting of
original
stock A and
improvement
stock B in
present
shareholders.

19. The Company shall call in and cancel the existing certificates of shares in the Company and issue in lieu thereof certificates of original and improvement stock in the form and under the conditions prescribed under the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof. Company
shall call in
and cancel
existing
share certi-
ficates and
issue new
certificates in
lieu thereof.

20.—(1) Any transfer of stock may be in multiples of one pound so long as thereby no holding of any stockholder of the Company is less than ten pounds nominal value of stock. Multiples of
stock.

A.D. 1903.

(2) Notice of the provisions of this section shall be stated in all stock certificates.

Power to
Company to
raise addi-
tional capital.

21. The Company may from time to time raise additional capital not exceeding in the whole forty-two thousand pounds by the creation and issue of new ordinary stock or new preference stock or partly in one mode and partly in the other but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premiums obtained upon the sale thereof shall have been paid in respect thereof. Provided always that not more than one half of such capital shall be issued as preference capital. Provided also that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of forty-two thousand pounds.

Profits of
Company
limited.

22. Except as in this Act otherwise provided the profits of the Company to be divided among the stockholders in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say) :—

On the original stock **A** the rate of ten pounds in respect of every one hundred pounds :

On the improvement stock **B** the rate of five pounds in respect of every one hundred pounds :

On the new stock **C** to be raised under the powers of this Act the rate of five pounds in respect of every one hundred pounds actually paid up of such capital whether the same be issued as ordinary capital or as preference capital.

Dividends
on different
classes of
stock to be
paid propor-
tionately.

23. In case in any half year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

New stock to
be offered by
auction or
tender.

24. Notwithstanding anything in this Act contained the Company shall when any new stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and

that the reserved price put upon such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of stock in the Company.

A.D. 1903.

25. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase-money of stock sold to be paid within three months.

26. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Bridgwater the clerk to the Bridgwater Rural District Council and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the borough of Bridgwater.

Notice to be given as to sale of stock.

27. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same for the purpose of sale by auction or tender to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and the reserve put upon such stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold shall be again offered to the holders of ordinary stock at the last mentioned reserved price and so from time to time until the whole of such stock is sold.

Stock not sold by auction or by tender to be offered to stockholders.

28. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference stock (if any) and dividend on the ordinary stock at the authorised rate of dividend the excess beyond

If profits exceed amount limited excess may be invested and

A.D. 1903. the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Application of excess of profits over authorised rate of dividend.

29. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference stock (if any) and dividend at the authorised rate of dividend on the ordinary stock of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Power to create a reserve fund out of dividends in excess of standard rate of dividend and application thereof.

30. Where in any year the dividend of the Company on the ordinary stock of the Company shall exceed the standard rate of dividend by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be

applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the standard rate of dividend on the ordinary stock of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund. A.D. 1903.

31. The Company may at any time and from time to time after the passing of this Act in addition to the sum of one thousand three hundred pounds already borrowed borrow on mortgage of their undertaking in respect of the original stock A and the improvement stock B any sum not exceeding in the whole twelve thousand seven hundred pounds. Power to borrow in respect of original and improvement stock.

32. In addition to the money which the Company are authorised to borrow by the last preceding section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Power to borrow in respect of additional capital.

33. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand five hundred pounds in the whole. Appointment of receiver.

34. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act Debenture stock.

A.D. 1903. — shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

Priority of mortgages and debenture stock over other debts.

35. All money raised or to be raised by the Company on mortgage or by the issue of debenture stock shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the Company's undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Existing mortgages to have priority.

36. All mortgages granted by the Company and subsisting at the passing of this Act shall during the continuance thereof have priority over all mortgages granted in pursuance of this Act but nothing in this section contained shall affect the priority of the interest of any debenture stock at any time created and issued by the Company.

Limit of interest on borrowed money.

37. The Company shall not without the consent of the Board of Trade pay interest at a higher rate than five pounds per centum per annum in respect of any moneys raised by the creation and issue of debenture stock under the authority of this Act.

As to receipts for interest on debenture stock standing in more than one name.

38. Where any debenture stock of the Company whether issued before or after the passing of this Act is registered in the names of more than one person as holders of any such debenture stock the receipt of any one of the registered holders of such debenture stock shall in the event of no notice to the contrary being served upon the Company from the other or others of such registered holders be a sufficient discharge to the Company for any

interest payable in respect of such debenture stock the receipt whereof is acknowledged by such receipt. A.D. 1903. -----

39. If any money is payable by the Company to a stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

40. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable. Application of money.

41. The first ordinary meeting of the Company shall be held in the month of September immediately succeeding the passing of this Act and all subsequent ordinary meetings of the Company shall be held in the month of September in each year or at such other stated period as shall be appointed for such purpose by an order of any general meeting. First and other meetings.

42. The directors of the Company may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half-year one half of the amount of the standard rate of dividend. Interim dividends.

43. The directors of the Company may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulated in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring interim dividends.

44. The number of directors shall be nine but the Company may from time to time vary the number provided the number be not less than five. Number of directors.

45. The qualification of a director shall be the possession in his own right of stock of the Company of the nominal value of not less than two hundred pounds. Qualification of directors.

46. The quorum of a meeting of directors shall be four but if the number of directors be reduced to five the quorum shall be three. Quorum.

A.D. 1903.
—
First direc-
tors.

47. Notwithstanding the repeal of the recited Act the members of the committee of management appointed under that Act and in office at the passing of this Act shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to fill the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Scale of
voting.

48. The proprietors of stock forming part of the capital of the Company as declared by this Act or to be raised under the authority of this Act shall be entitled to votes according to the following scale (that is to say):—

Every holder of any or every class of stock of the various classes of stock of whatever description forming part of the capital of the Company of the aggregate nominal amount of ten pounds and upwards shall have one vote for every ten pounds worth of stock up to one hundred pounds:

Every holder of any or every class of stock of the various classes of stock of whatever description forming part of the capital of the Company of an aggregate nominal amount exceeding one hundred pounds and upwards shall in addition to the votes which they are entitled to under the previous paragraph be entitled to one further vote for every fifty pounds worth of stock exceeding one hundred pounds up to one thousand pounds:

Every holder of any or every class of stock of the various classes of stock of whatever description forming part of the capital of the Company of an aggregate nominal amount exceeding one thousand pounds shall in addition to the votes which they are entitled to under the two previous paragraphs

be entitled to one further vote for every one hundred pounds worth of stock exceeding one thousand pounds: A.D. 1903.

Holders of less amount of stock than ten pounds shall not be entitled to vote.

49. The auditor need not be a shareholder.

As to qualification of auditor.

50. Any contract to be made under this Act with any corporation or public body shall not disqualify any of the members of such corporation or public body for the office of director of the Company and no director or shareholder of the Company shall be disqualified for the office of director of the Company by reason of any contract between him and the Company for any loan of money to the Company but no director of the Company being a member of any such corporation or public body shall vote upon any question with reference to any contract with such corporation or public body.

Contracts not to disqualify for office of director.

51. Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference and in the Second Schedule to this Act as they may require for the purposes of this Act.

Power to take lands.

52. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act.

Limit of time for compulsory purchase of lands.

53. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plan will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain lands and buildings.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Third Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed

A.D. 1903.

from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making any compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice

to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1903.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

54. Subject to the provisions of this Act the Company from time to time may maintain alter improve enlarge extend and renew or discontinue their existing gasworks upon the lands on which the same are erected or any part thereof and which are described in the First Schedule to this Act and they may also upon the lands described in the Second Schedule to this Act erect lay down provide and from time to time maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and on such lands respectively may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture purchase sell provide supply and deal in lime coke tar pitch asphaltum sulphate of ammonia carbonate of ammonia ammoniacal liquor oil and all other products and materials resulting from the conversion of such products or the residuum of any materials employed in or resulting from the manufacture of gas :

Powers as to
construction
and mainte-
nance of
gasworks &c.

Provided that nothing in this section contained shall authorise the Company to use the lands described in the First Schedule to this

A.D. 1903. — Act or any part or parts thereof in contravention of the covenants contained in the indenture of conveyance under which the Company acquired the said lands.

Power to purchase lands by agreement. Gas not to be manufactured except on lands scheduled.

55. The Company may for the purposes of their undertaking purchase take and hold by agreement but not otherwise in addition to the lands described in the First and Second Schedules to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may from time to time require for the purposes of their works and undertaking but no land shall be used by the Company for the purposes of manufacturing gas or residual products except the lands described in the First and Second Schedules to this Act.

Restriction on taking houses of labouring class.

56. The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December next before the passing of this Act were occupied wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Power to erect workmen's dwellings.

57. The Company may on the lands described in the First and Second Schedules to this Act and on any other lands which they may acquire by agreement under the authority of this Act erect and maintain dwelling-houses for their officials and workmen or other

persons and may use or convert any house on any part of the said lands for such purpose. A.D. 1903.

58. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting such lands and the provisions of the said Acts with respect to lands and rent-charges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

59. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the King's Majesty.

Saving rights of Crown.

60. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges

Works below high-water mark not to be commenced without consent of Board of Trade.

A.D. 1903. shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

For protec-
tion of Great
Western
Railway
Company.

61. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply :—

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing Provided always that if such principal engineer shall not approve or disapprove any plans or proposals so submitted to him within twenty-eight days after the same are delivered or shall refuse or neglect to superintend the work the Company may proceed with the same without the approval of the plans as aforesaid or without the superintendence of the said engineer :

(B) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company But so nevertheless that any mains or pipes so laid by the Great Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Company's engineer :

A.D. 1903.
—

- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (d) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (e) The Company shall pay to the Great Western Company for any easement to be acquired by them across over or under any of the railways works or property of the Great Western Company for constructing or maintaining any of the works of the Company such sum annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (f) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little

A.D. 1903.

damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works :

- (G) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

Power to lay pipes in streets not dedicated to public use.

62. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Company may acquire patent rights.

63. The Company may acquire hold and use patent rights or licenses not being exclusive for the use of inventions in relation to the manufacture of gas or in relation to the distribution or supply of gas and also in relation to the manufacture conversion or utilisation of residual products and materials arising in or resulting from the manufacture of gas.

Standard price of gas with sliding scale as to dividend.

64. The standard price to be charged by the Company for gas supplied by them shall be three shillings and sixpence per one thousand cubic feet :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary stock as follows :—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased

be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid up capital with a ten per centum standard rate of dividend and by two shillings and sixpence on every one hundred pounds of such capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds: A.D. 1903.

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by five shillings on every one hundred pounds of ordinary paid up capital with a ten per centum standard rate of dividend and by two shillings and sixpence on every one hundred pounds of such capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

65. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall *mutatis mutandis* apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted. Pressure of gas.

66. The prescribed number of candles shall be fourteen.

Quality of gas.

67. Within six months from the passing of this Act a testing place shall be provided upon some part of the works or lands of the Company or within two hundred yards from any part thereof. Testing place.

68. The prescribed burner shall be the burner known as "Sugg's London argand burner No. 1" consuming five cubic feet of gas per hour with a six-inch by one-and-three-quarter-inch glass chimney measured outside and if at any time the gas flame rises Burner.

A.D. 1903.
—

above the top of the glass a six-inch by two-inch chimney measured outside shall be used.

As to construction and placing of pipes &c. between mains and meters.

69. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating in the borough of Bridgwater and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may

order by which of the parties the costs of and incident to the appeal shall be paid. A.D. 1903.

70. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Anti-fluctuators for gas engines.

71.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

Power to supply gas fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

72. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of and of any company or person authorised by Parliament to supply gas within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding seven years from the making of the contract as shall be agreed upon :

Company may contract with local authority for supply in bulk.

Provided that the Company shall not supply gas under any such contract as aforesaid beyond the Company's limits of supply if and

A.D. 1903. — so long as such supply would interfere with the supply of gas within those limits.

Company to pay interest on money deposited as security for gas meter &c.

73. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest after the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Gas consumers to give notice to Company before removing.

74. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be contained in every demand note for gas rent.

Power to refuse supply to persons in debt for other premises.

75. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply of gas.

76. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company.

Period of error in defective meters.

77. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Discounts.

78. The Company may if they think fit allow discounts or rebates not exceeding in any case fifteen per centum to consumers of gas in consideration of large consumption and prompt payment of gas and meter rents upon such scale and subject to such

conditions and regulations as may be prescribed by special contract in writing between the Company and any of such large consumers Provided that such discounts shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent. A.D. 1903.
—

79. The Corporation may at their own cost provide and maintain a testing place at the municipal offices Bridgwater with apparatus therein for testing the purity and illuminating power of the gas supplied by the Company in accordance with the provisions of the Gasworks Clauses Act 1871 and the Corporation shall afford to the Company their officers and servants free access to such testing place at all times and sections 31 32 and 33 of the Gasworks Clauses Act 1871 shall apply to the testing of gas at such testing place Provided that for the purposes of section 28 of the Gasworks Clauses Act 1871 the prescribed testing place shall be the existing testing place at the works of the Company. Power to
Corporation
to provide
testing place.

80.—(1) If at any time within twenty years from the passing of this Act the Corporation shall apply to Parliament for power to purchase the undertaking of the Company the Company shall not oppose such application except in so far as may be necessary in order to secure the insertion in any Bill introduced into Parliament to authorise such purchase of clauses to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit and if such powers of purchase be granted the Company shall within twelve months after the passing of the Act conferring such powers sell and transfer and the Corporation shall purchase and acquire the undertaking of the Company subject to all the existing mortgages obligations and liabilities of the Company in respect of or affecting their undertaking. Provisions
as to pur-
chase of
undertaking
by Corpora-
tion.

(2) Any such sale and purchase shall be for such price and consideration and on such terms and conditions as may be agreed upon between the Company and the Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the Corporation and the expression “lands” shall mean the undertaking of the Company.

(3) In addition to the sum to be paid by the Corporation to the Company under the foregoing provisions of this section the

A.D. 1903.

Corporation shall pay to the Company all the costs and expenses of and incident to the arbitration and the transfer of the undertaking of the Company and the winding up of the Company. Provided that in the event of the Corporation obtaining powers under subsection (1) of this section to purchase the undertaking of the Company and purchasing the same within ten years from the passing of this Act they shall pay to the Company all the costs charges and expenses incurred by the Company preliminary to and of and incident to the preparing applying for and obtaining this Act or otherwise in relation thereto.

(4) The Corporation shall also pay compensation to any officers and servants in the regular employment of the Company who shall not be retained by the Corporation in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company at the passing of the Act authorising the purchase of the undertaking of the Company in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the Corporation the amount of such compensation in default of agreement to be determined by arbitration as aforesaid.

(5) For the purposes of this section the expression "the undertaking of the Company" includes all the gasworks engines mains pipes and machinery lands and buildings plant fixed and movable and other property and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of the undertaking of the Company to the Corporation save and except—

- (i) The cash balances (other than consumers' deposits) in the Company's hands or in those of their bankers or agents on the day of the transfer securities for money and all sums standing to the credit of their reserve fund and all undivided profits and all surplus stock in trade and stores not in use which may be purchased by the Corporation at a valuation in the usual way :
- (ii) All the rents and profits of and all book and other debts due to the Company and all rates accrued due on the date of the transfer and the books and papers relating exclusively to the shareholders in and the constitution of the Company.

Map of gas
mains to be
produced to
town clerk.

81. The Company shall within six months after the passing of this Act produce to the town clerk of Bridgwater a map showing so far as the Company are able to show from their records and without opening or breaking up the soil of any streets within their limits of supply the course and situation of the gas mains belonging

to them within the borough of Bridgwater to enable a tracing thereof to be made for the use of the Corporation and shall at the end of every six months after such period in order that the said map may be from time to time corrected give information to the Corporation of any additions or alterations made to the said gas mains. A.D. 1903.
—

82. In the exercise of any of the powers conferred upon the Company under the section of this Act whereof the marginal note is "Powers as to construction and maintenance of gasworks &c." the Company shall not except with the consent of the Corporation in writing first had and obtained alter the position of or otherwise interfere with any sewers or drains belonging to the Corporation which may be situate in under or upon the lands described in the Second Schedule to this Act. For protec-
tion of
sewers and
drains of
Corporation.

83.—(1) Where any works to be done under the authority of this Act will interfere with the banks or bed of the River Parrett or any rhine watercourse or other work under the jurisdiction of the Somersetshire Drainage Commissioners and situate upon or under the land described in the Second Schedule to this Act the Company shall not commence such work until they have given to the Commissioners fourteen days' notice in writing of their intention to commence the same by leaving such notice at the office of the Clerk of the Commissioners with plans sections and other necessary particulars of the said works and the Commissioners have signified their approval of the same or on their failure so to do within fourteen days after the service of the said notice until the said plans and sections have been approved by an arbitrator to be appointed as hereinafter provided and all such works shall be executed by the Company according to such approved plans sections and other particulars. For protec-
tion of
Somerset-
shire Drain-
age Commis-
sioners.

(2) Any question which may arise between the Company and the Commissioners shall be referred to and determined by an arbitrator to be agreed upon between the Company and the Commissioners or failing agreement to be appointed by the Board of Trade.

84. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company. Expenses of
Act.

A.D. 1903. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LAND NOW BELONGING OR REPUTED TO BELONG TO THE COMPANY
ON WHICH THE EXISTING GASWORKS OF THE COMPANY ARE
ERECTED.

First A piece of land containing by admeasurement 1 acre and 22 perches or thereabouts situate in the parish and borough of Bridgwater in the county of Somerset bounded on the south by property belonging or reputed to belong to the trustees of the late John Browne deceased on the north by property belonging or reputed to belong to John Withycombe on the east by the River Parrett and on the west by the Old Taunton Road.

Secondly A piece of land containing by admeasurement 1 acre 2 roods and 25 perches or thereabouts situate in the parish and borough of Bridgwater aforesaid bounded on the south partly by land belonging or reputed to belong to the trustees of the late John Browne deceased and partly by land belonging or reputed to belong to Thomas Foster Barham on the north partly by property belonging or reputed to belong to Joseph Willis & Son and partly by property belonging or reputed to belong to John Withycombe on the east by the Old Taunton Road and on the west by an occupation roadway or back lane leading to the back entrances of houses abutting on the Taunton Road.

THE SECOND SCHEDULE.

First A piece of land and part of the bank and foreshore of the River Parrett containing by admeasurement 3 roods and 12 perches or thereabouts situate in the parish and borough of Bridgwater in the county of Somerset belonging or reputed to belong to the trustees of the late John Browne deceased and in the occupation of the Somerset Trading Company Limited bounded on the south partly by a brook known as Hamp Brook and partly by land and buildings belonging or reputed to belong to the trustees of the late John Browne deceased and in the occupation of the Somerset Trading Company Limited on the north by premises belonging or reputed to belong to and in the occupation of the Company on the east by the River Parrett at low-water mark and on the west by the Old Taunton Road.

Secondly A piece of land containing by admeasurement 3 roods and 12 perches or thereabouts situate in the parish and borough of Bridgwater

A.D. 1903.

aforesaid belonging or reputed to belong to the trustees of the late John Browne deceased and in the occupation of the Somerset Trading Company Limited bounded on the north by land belonging or reputed to belong to the Company on the south partly by the Hamp Brook and partly by a cottage offices and garden belonging or reputed to belong to the trustees of the late John Browne deceased and now in the occupation of Richard Duddridge and others on the west partly by land belonging or reputed to belong to Thomas Foster Barham and now in the occupation of John Palmer Charles Creedy Thomas Storey James Wilkins and James Jarvis and partly by the aforesaid cottage offices and garden and on the east by the Old Taunton Road.

Thirdly A piece of land containing by admeasurement 2 roods or thereabouts situate in the parish and borough of Bridgwater aforesaid belonging or reputed to belong to Thomas Foster Barham and in the occupation of John Palmer Charles Creedy Thomas Storey James Wilkins and James Jarvis bounded on the north by property belonging or reputed to belong to and in the occupation of the Company on the south by a cottage offices and garden belonging or reputed to belong to the trustees of the late John Browne deceased and in the occupation of Richard Duddridge and others on the east by property belonging or reputed to belong to the said trustees of the late John Browne deceased and in the occupation of the Somerset Trading Company Limited and on the west by an occupation roadway or back lane leading to the back entrances of houses abutting on the Taunton Road.

THE THIRD SCHEDULE.

PROPERTIES IN RESPECT OF WHICH A PORTION ONLY IS REQUIRED
TO BE TAKEN.

Parish and Borough.	Numbers on deposited Plan.
Bridgwater - - - -	1 2

Printed by EYRE and SPOTTISWOODE,
FOR
T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.

